

Director of the Agency for the Protection of Personal Data and member of the European Data Protection Board Zdravko Vukić participated in the meeting held on December 13, 2022, in Brussels.

At the last plenary session of this year, the European Data Protection Board adopted a statement regarding the recent ruling C-817/19 of the Court of Justice of the European Union on the use of data from Passenger Name Records (PNR) for the purpose of preventing, detecting, investigating, and prosecuting acts of terrorism and serious criminal offenses in accordance with Directive (EU) 2016/681 of the European Parliament and of the Council of April 27, 2016, on the use of data from Passenger Name Records (PNR) for the purpose of preventing, detecting, investigating, and prosecuting acts of terrorism and serious criminal offenses.

After the Belgian Constitutional Court referred a request for an opinion on June 21, 2022, the EU Court issued a ruling on the PNR Directive. Although the Court found that the ruling does not affect the validity of the PNR Directive, it notes that the Directive on the use of data from Passenger Name Records (PNR) should be interpreted in a way that includes significant limitations on the processing of personal data to ensure compliance with the EU Charter of Fundamental Rights (Charter). Some of these limitations relate to the application of the PNR system only to acts of terrorism and serious criminal offenses that are objectively linked to the transport of passengers by air, as well as to the non-selective application of a general retention period of five years on the personal data of all passengers.

The interpretation proposed by the EU Court significantly narrows the ways in which EU member states can process data from PNR. The European Data Protection Board considers it likely that the current processing of PNR data in many, if not most, member states is not fully compliant with the PNR Directive as interpreted by the EU Court.

In its statement, the European Data Protection Board calls on EU member states to take all necessary steps at the legislative and/or administrative level to ensure that the transposition into national legislation and the implementation of the Directive on the use of data from Passenger Name Records (PNR) is in accordance with the Charter as interpreted by the EU Court. In this regard, the European Data Protection Board notes that data protection authorities are fully competent to investigate compliance with EU data protection requirements at the national level.